



## CHAPTER lxxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Greenock Corporation. A.D. 1926.  
[4th August 1926.]

**W**HEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Greenock Corporation Order Confirmation Act 1926. Short title.



A.D. 1926.

SCHEDULE.

GREENOCK CORPORATION.

*Provisional Order to extend the time for the compulsory purchase of lands for the purposes of the Greenock Corporation Order 1923 to confer further financial powers upon the Corporation of Greenock and for other purposes.*

WHEREAS the burgh of Greenock (in this Order called "the burgh") in the county of Renfrew is under the government for municipal purposes of the Corporation of Greenock (in this Order called "the Corporation") and the control and management of the streets and roads within the burgh are vested in and exercised by the Corporation :

And whereas by the Greenock Corporation Act 1909 the local Acts and Orders relating to the improvement and local government of the burgh were consolidated and by the Greenock Corporation Acts 1909 to 1923 and the Greenock Improvement (Extension of Time) Order 1924 further powers were conferred upon the Corporation :

And whereas the period limited by the Greenock Corporation Order 1923 for the compulsory purchase of lands for the purposes of the street works authorised by that Order will expire on the eighteenth day of July one thousand nine hundred and twenty-six and it is expedient that the said period should be extended as by this Order provided :

And whereas it is expedient that the Corporation should be empowered to stop up a portion of Boundary Street situate within the burgh :

And whereas the Corporation are empowered to levy rates and assessments and have under the powers conferred by the said Acts of 1909 to 1923 and other Acts and Orders borrowed moneys for the purposes thereof :



And whereas it is expedient for providing better facilities in the management of the funds of the Corporation on loans account and the simplification of the accounts of the Corporation relating to borrowed money and the redemption thereof that the powers contained in this Order in relation to the borrowing of money and the establishment of a loans fund should be conferred upon the Corporation: A.D. 1926.

And whereas it is expedient that such further provisions should be enacted as are in this Order contained:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows:—

## PART I.

### PRELIMINARY.

1. This Order may be cited as the Greenock Corporation Order 1926. Short title

2. The Greenock Corporation Acts 1909 to 1923 the Greenock Improvement (Extension of Time) Order 1924 the Greenock Electricity (Extension) Special Order 1925 and this Order may be cited together as the Greenock Corporation Acts 1909 to 1926. Citation of Acts.

3. This Order shall (except where otherwise provided in this Order) commence and have effect on the date of the passing of the Act confirming this Order which date is hereinafter referred to as "the commencement of this Order." Commencement of Order.

4. This Order is divided into Parts as follows:— Division of Order into Parts.

Part I.—Preliminary.

Part II.—Streets.

Part III.—Finance.

5. In this Order the several words and expressions to which meanings are assigned by the Act of 1909 shall Interpretation



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A.D. 1926. have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires the following expressions shall have the respective meanings in this section applied to them (that is to say) :—

“ The burgh ” means the burgh of Greenock ;

“ The Corporation ” means the Corporation of Greenock ;

“ The Act of 1909 ” means the Greenock Corporation Act 1909 ;

“ The Order of 1923 ” means the Greenock Corporation Order 1923 ;

“ The Acts of 1909 to 1923 ” means the Greenock Corporation Acts 1909 to 1923.

PART II.

STREETS.

Extension of time for purchase of lands for purposes of Order of 1923.

6. The period limited by section 10 (Period for compulsory purchase of lands) of the Order of 1923 for the compulsory purchase of lands for the purposes of the street works authorised by that Order is hereby extended for the period of three years from the eighteenth day of July one thousand nine hundred and twenty-six.

Power to stop up portion of street.

7. The Corporation may stop up and discontinue the user by the public of so much of Boundary Street situate within the burgh as lies to the north of Port Glasgow Road or any part thereof.

PART III.

FINANCE.

Power to use one form of bond for all purposes.

8.—(1) Where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgage bonds in pursuance of the provisions of this section.

(2) All mortgage bonds to be granted by the Corporation after the commencement of this Order for moneys borrowed in the exercise of any statutory borrowing power may be in or near to the form contained in the schedule to this Order and such bonds may be renewed transferred and discharged by minutes of renewal transfer



or discharge in or near to the forms in the said schedule A.D. 1926.  
contained.

(3) All mortgage bonds granted under this section and any interest thereon shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the bonds or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation and any interest thereon at any time after the date of the first grant of a bond under this section.

(4) The repayment of all moneys borrowed and the payment of interest thereon secured by mortgage bonds granted under this section shall be and the same are by virtue of this Order charged indifferently upon all the funds rates assessments and revenues of the Corporation.

9. All moneys owing or to be owing or borrowed or to be borrowed and all stock to be issued by the Corporation together with the interest dividends annuities and all other annual sums for the time being payable thereon shall be and the same are hereby by virtue of this Order charged indifferently upon all the funds rates assessments and revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

Charge of  
moneys  
borrowed.

10. Notwithstanding anything in this Order contained section 7 (Application of money received by local authority as undertakers) of the schedule to the Electric Lighting (Clauses) Act 1899 shall in its application to the electricity undertaking of the Corporation be read and construed as if the burgh general assessment had been referred to instead of the local rate therein mentioned.

Receipts  
from  
electricity  
undertak-  
ing.

11.—(1) Notwithstanding anything contained in any Act or Order as from the fifteenth day of May one thousand nine hundred and twenty-seven or as from any succeeding fifteenth day of May the Corporation may if they think fit establish a fund to be called the "Greenock Corporation Loans Fund" (in this Order referred to as "the loans fund") to which shall be paid as and when they are received—

Establish-  
ment of  
loans fund.

(a) all moneys borrowed by the Corporation whether by the issue of stock or other security in



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connection with the exercise of any statutory borrowing power;

- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds or accounts of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers;
- (d) a sum or sums equal to the nett aggregate amount of all dividends or interest payable in each year on the stock bonds or other securities issued in exercise of the statutory borrowing powers of the Corporation and remaining outstanding; and
- (e) such other sum or sums as may be consistent with or essential to the operation of the loans fund:

And there shall also be carried to the credit of the loans fund the unapplied balances of all moneys borrowed or received on capital account or the interest and dividends thereon or for the redemption thereof except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the fifteenth day of May as from which the loans fund shall be established.

(2) The Corporation may also if they think fit carry to the credit of the loans fund all moneys from time to time standing in any reserve depreciation superannuation or other funds of the Corporation for use in accordance with the provisions of subsection (3) of this section.

(3) The moneys of the loans fund shall be used or applied by the Corporation—

- (a) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund or account of the Corporation;
- (b) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;



- (c) In the payment of dividends and interest on the stock bonds or other securities issued in the exercise of the statutory borrowing powers of the Corporation and remaining outstanding; or  
(d) in the payment of the expenses of managing the loans fund and other expenses incidental thereto :
- A.D. 1926.  
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And any moneys of the loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities or the repayment of such investments shall be repaid on receipt to the loans fund and the moneys of the loans fund shall not be used or applied otherwise than as provided in this subsection or in the section of this Order of which the marginal note is " Raising of contributions to loans fund."

(4) All moneys borrowed or received and used or applied in the exercise of any statutory borrowing power or otherwise as provided by subsection (3) of this section prior to the establishment of the loans fund shall to the extent of the amount outstanding be deemed to have been so used or applied from the loans fund.

(5) Save as in this Order expressly provided all the obligations of the Corporation to the holders of annuities or other securities of the Corporation shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Secretary for Scotland and such scheme may make provision for any matters incidental to the establishment and administration of the loans fund.

(7) The accounts of the Corporation for or relating to the loans fund shall be subject to the same audit and certification as all other accounts of the Corporation under the provisions of the Town Councils (Scotland) Acts 1900 to 1923 and any Acts amending or extending the same.

12.—(1) The Corporation shall from time to time in order to raise the amounts of the several contributions out of the several revenues of the Corporation for payment into the loans fund do all such acts exercise all such powers collect all such money and impose assess and levy all such rates and assessments as they lawfully can or ought to do exercise collect impose assess

Raising of  
contribu-  
tions to  
loans fund.



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A.D. 1926, and levy for the purposes of or in relation to their  
— respective statutory borrowing powers.

(2) If there is a deficiency on the revenue of the Corporation in respect of any required contribution the Corporation shall advance the amount of the deficiency out of the loans fund.

(3) The amount so advanced shall be a debt due from the revenue of the Corporation on which the deficiency existed to the loans fund and interest shall be payable thereon at a rate to be determined upon by the Corporation until repayment and the same debt and interest thereon shall as soon as in the judgment of the Corporation may be be raised and paid out of the revenue of the Corporation on which the deficiency existed.

Loans fund  
guarantee  
rate.

13.—(1) If at any time it shall appear to the Corporation that the amount of any deficiency in respect of any contribution from any of the revenues of the Corporation to the loans fund as hereinbefore provided should be paid into the loans fund out of moneys to be raised by means of the guarantee rate hereinafter mentioned and the Corporation at a meeting specially called with notice of the object resolve so to pay the amount of any such deficiency the Corporation may and they are hereby empowered to impose assess and levy upon and from all lands and heritages situated within the burgh such rate as they may consider necessary for the purpose of paying the amount of any such deficiency which rate shall be called the "loans fund guarantee rate" and the sums so imposed assessed and levied shall be carried to and form part of the loans fund and be applied as herein provided with respect to contributions to the said fund.

(2) The loans fund guarantee rate shall be imposed and assessed one-half on the owners and one-half on the occupiers of all lands and heritages within the burgh and shall be levied recovered and collected in the same manner and along with and subject to the same provisions and exemptions as are provided with respect to the assessments leviable under the Acts of 1909 to 1923.

Saving for  
existing  
rating limits  
and exemp-  
tions.

14.—(1) Notwithstanding anything contained in this Order the accounts of the Corporation shall be so kept as to show under a separate heading or division in relation to the respective funds assessments and accounts



of the Corporation the amounts of all revenues and expenditure (including moneys paid into or out of the loans fund) and the Corporation shall not impose assess or levy any rate for the purpose of any fund assessment or account which taking one year with another shall be in excess of any limit which may now be prescribed as the maximum amount of the rate for such fund assessment or account.

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(2) Nothing in this Order shall limit prejudice or affect any exemption to which any company body or person is now entitled from or in respect of any rate imposed assessed or levied by the Corporation for any purpose.

15. It shall not be obligatory on the Corporation to receive or register any transfer assignation certificate of death burial bankruptcy or marriage probate confirmation letters of administration or other document evidencing a transmission of any authorised security except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Evidence of transfer or transmission of securities.

16. If any money is payable to a bondholder mortgagee or stockholder being a pupil minor idiot or lunatic the receipt of the guardian or trustee of his estate or of his tutor or curator or curator bonis shall be a sufficient discharge to the Corporation.

Receipt in case of persons not sui juris.

17. Where more persons than one are registered as joint holders of any bond or mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the town clerk by any other of them.

Interest on securities held jointly.

18. Notwithstanding anything contained in this Order the Corporation shall show in their accounts relating to any undertaking or purpose all items (including payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

Form of accounts.



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Apportion-  
ment of  
items.

19. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to either or any of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

Rate of  
accumula-  
tion of  
annual  
payments to  
sinking fund  
for repay-  
ment of  
loans.

20. Notwithstanding anything contained in any Acts or Orders or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund formed by the Corporation for any purpose shall in respect of any moneys to be borrowed by the Corporation after the commencement of this Order be three pounds ten shillings per centum per annum or such other rate as the Secretary for Scotland may from time to time approve.

Return to  
Secretary  
for Scot-  
land with  
respect to  
repayment  
of debt.

21.—(1) The chamberlain shall if and when he is requested by the Secretary for Scotland so to do transmit to the Secretary for Scotland a return showing the provision made for the repayment of any loans raised by the Corporation under the authority of the Acts of 1909 to 1923 and this Order.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Secretary for Scotland may require and shall if so required by him be verified by statutory declaration of the chamberlain and be transmitted within one month after the making of the request and in the event of his failing to make such return the chamberlain shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Secretary for Scotland as a debt to the Crown is recoverable and notwithstanding the recovery of such penalty the making of the return shall be enforceable by decree of either division of the Inner House of the Court of Session pronounced in a summary application presented for that purpose.

(3) If it appears to the Secretary for Scotland by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required to be set apart for any sinking fund (whether such instalment or annual payment or sum is required by any Act or Order or by the Secretary for Scotland in virtue



thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Secretary for Scotland may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Secretary for Scotland as soon as the order is complied with and any such order shall be enforceable by decree of either division of the Inner House of the Court of Session pronounced in a summary application presented for that purpose. A.D. 1926.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Secretary for Scotland with regard to the repayment of debt by any provisions of the Acts of 1909 to 1923 notwithstanding anything contrary to or inconsistent therewith in any such Act.

22. The provisions of the following sections of the Act of 1909 and the Order of 1923 so far as not varied by or inconsistent with the provisions of this Order shall with any necessary modifications extend and apply to the exercise of the powers of this Part of this Order as if the same were re-enacted in this Order (that is to say) :— Application of provisions of Act of 1909 and Order of 1923.

The Act of 1909—

- Section 125 (Definition of certain terms);
- Section 131 (Mode of raising money);
- Section 132 (Adoption of Burgh Police (Scotland) Act 1903 Power to borrow temporarily);
- Section 134 (Registration of bonds and assignments);
- Section 135 (Mode of repayment of money borrowed);
- Section 137 (Protection of lender from inquiry);
- Section 138 (Corporation not to regard trusts);
- Section 139 (Arrears may be enforced by appointment of judicial factor);
- Section 140 (Powers and duties of judicial factor);
- Section 142 (Application of money borrowed);



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Section 144 (Scheme for fixing equated periods);  
Section 145 (Saving for existing mortgages of Corporation) except the proviso to that section.

The Order of 1923—

Section 47 (Power to re-borrow);

Section 49 (Use of moneys forming part of sinking and other funds).

Repeal of certain provisions of Act of 1909.

23. The following sections of the Act of 1909 are hereby repealed (that is to say):—

Section 133 (Form of bonds) and the Tenth Schedule;

Section 143 (Annual return to Secretary for Scotland with respect to sinking fund).

Costs of Order.

24. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed for that purpose which moneys the Corporation are hereby authorised to borrow in manner provided by and subject to the provisions of this Order Provided that any moneys borrowed by the Corporation for the purposes of this section shall be repaid within five years from the commencement of this Order.

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The SCHEDULE referred to in the foregoing Order.

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FORM OF MORTGAGE BOND.

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CORPORATION OF GREENOCK.

Number (*here state the number*).

By virtue of the Greenock Corporation Acts 1909 to 1926 and of other powers in that behalf—

We the Corporation of Greenock in consideration of the sum of (*insert the sum in words*) advanced and paid to us on the                      day of                      nineteen



hundred and                      for the purposes of the said Acts by      A.D. 1926.  
C.D. of E. do hereby bind and oblige the said Corporation  
out of the first and readiest of the moneys to be raised  
under the annual rates and assessments by the said  
Acts authorised to be imposed and levied to pay at the  
term of (*insert term of payment*) to the said C.D. his  
executors or assignees the said sum of (*state the sum*)  
and also the interest thereof at the rate of (*insert the*  
*rate of interest*) per centum per annum from the date  
hereof at the terms of Whitsunday and Martinmas in  
each year till the said sum is paid and for the further  
security of the said C.D. we do hereby assign to him  
his executors or assignees such proportion of the said  
moneys to be raised under the said annual rates and  
assessments and of the revenues of the Corporation  
from time to time arising from any undertakings land  
or other property for the time being of the Corporation  
as shall be equivalent to the said sum now paid to us  
and the interest thereon as aforesaid from the date  
hereof to the term of payment and for and in respect  
of the said interest we the said Corporation shall pay  
the several sums contained in the                      interest  
warrants bearing the number and date hereof and  
delivered herewith and that at the several times men-  
tioned in such warrants upon delivery of the same  
respectively and such delivery shall be a sufficient  
receipt and discharge to us for the contents of such  
warrants Declaring that the said C.D. and his foresaids  
shall not be entitled to make and that we shall not be  
bound to register any partial assignation of these  
presents or of the sums of money principal or interest  
herein contained And we consent to the registration  
hereof for preservation and execution In Witness  
whereof these presents are subscribed and sealed at  
a meeting of the Corporation held at Greenock upon  
the                      day of                      nineteen hundred and  
years before these witnesses.

(Witness)

Provost or Chairman.

(Witness)

Town Clerk.

MINUTE OF RENEWAL—No.      .  

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19 . It has been mutually stipulated and  
agreed upon that the repayment of the principal sum contained  
in the within bond shall be postponed and the same shall not be  
due and exigible until the                      day of                      nineteen



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A.D. 1926.      hundred and      and that interest shall become due on the  
—      said principal sum to the date last mentioned at the rate of  
                 per centum per annum and shall be paid half-yearly on  
presentation of the interest warrants      in  
number issued herewith.

Signature of bondholder.

Provost or Chairman.

Town Clerk.

FORM OF TRANSFER.

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I (C.D.) within designed [or I (C.D.) executor dative *or otherwise as the case may be* of (E.F.) within designed] do transfer this bond with all right title or interest which I have under the same to (G.H.) his [or her or their] (*as the case may be*) executors or assignees In witness whereof (*insert testing clause*).

DISCHARGE.

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Received from the Corporation of Greenock the within sum  
of      sterling which sum with all interest due  
thereon is hereby discharged.

Dated at      the      day of  
nineteen hundred and

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